

State Registration Number

N3862

Michigan Department of Environmental Quality
Air Quality Division

**RENEWABLE OPERATING PERMIT
STAFF REPORT**

ROP Number

MI-ROP-N3862-2017

Wexford County Landfill, LLC

SRN: N3862

Located at

990 US 131 North, Manton, Wexford County, Michigan 49663

Permit Number: MI-ROP-N3862-2017

Staff Report Date: March 20, 2017

This Staff Report is published in accordance with Sections 5506 and 5511 of Part 55, Air Pollution Control, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (Act 451). Specifically, Rule 214(1) requires that the Michigan Department of Environmental Quality (MDEQ), Air Quality Division (AQD), prepare a report that sets forth the factual basis for the terms and conditions of the Renewable Operating Permit (ROP).

TABLE OF CONTENTS

MARCH 20, 2017 - STAFF REPORT	3
APRIL 24, 2017 - STAFF REPORT ADDENDUM	7

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MARCH 20, 2017 - STAFF REPORT

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Purpose

Major stationary sources of air pollutants, and some non-major sources, are required to obtain and operate in compliance with an ROP pursuant to Title V of the federal Clean Air Act of 1990 and Michigan's Administrative Rules for Air Pollution Control pursuant to Section 5506(1) of Act 451. Sources subject to the ROP program are defined by criteria in Rule 211(1). The ROP is intended to simplify and clarify a stationary source's applicable requirements and compliance with them by consolidating all state and federal air quality requirements into one document.

This Staff Report, as required by Rule 214(1), sets forth the applicable requirements and factual basis for the draft ROP terms and conditions including citations of the underlying applicable requirements, an explanation of any equivalent requirements included in the draft ROP pursuant to Rule 212(5), and any determination made pursuant to Rule 213(6)(a)(ii) regarding requirements that are not applicable to the stationary source.

General Information

Stationary Source Mailing Address:	Wexford County Landfill, LLC 990 US 131 North Manton, Michigan 49663
Source Registration Number (SRN):	N3862
North American Industry Classification System (NAICS) Code:	562212
Number of Stationary Source Sections:	1
Is Application for a Renewal or Initial Issuance?	Renewal
Application Number:	201600124
Responsible Official:	Mr. Edward G. Ascione, President 231-258-9030
AQD Contact:	Mr. Rob Dickman, Environmental Quality Analyst 231-876-4412
Date Application Received:	July 14, 2016
Date Application Was Administratively Complete:	July 29, 2016
Is Application Shield In Effect?	Yes
Date Public Comment Begins:	March 20, 2017
Deadline for Public Comment:	April 19, 2017

Source Description

Wexford County Landfill is classified as a Type II sanitary landfill, which is also known as a Municipal Solid Waste (MSW) Landfill. The facility currently accepts petroleum contaminated soils, sludge, asbestos containing waste, municipal household waste, and other waste. The landfill received a volume expansion permit in April of 2000, and another in August of 2012. It has maximum design capacity of 3.45 million megagrams.

Landfill gas is collected at Wexford County Landfill by an active gas collection system. This system consists of vertical extraction wells that are installed in the depths of the landfill refuse and which remove

landfill gas by vacuum that is applied to the well from the blower. The collected landfill gas is then routed to a flare where it is combusted.

Additionally, a contaminated groundwater remediation system utilizing aeration ponds is currently in post-closure. Because of a monitoring requirement, it continues as an active emission unit. The facility also employs the use of a leachate evaporation system exempt from the requirement to obtain a Permit to Install pursuant to Rule 285(aa).

The following table lists stationary source emission information as reported to the Michigan Air Emissions Reporting System (MAERS) for the year **2015**.

TOTAL STATIONARY SOURCE EMISSIONS

Pollutant	Tons per Year
Carbon Monoxide (CO)	19.4
Lead (Pb)	0
Nitrogen Oxides (NO _x)	1.0
Particulate Matter (PM)	6.3
Sulfur Dioxide (SO ₂)	1.2
Volatile Organic Compounds (VOCs)	0.4
Non-Methane Organic Compounds (NMOC)	11.3

See Parts C and D in the ROP for summary tables of all processes at the stationary source that are subject to process-specific emission limits or standards.

Regulatory Analysis

The following is a general description and history of the source. Any determinations of regulatory non-applicability for this source are explained below in the Non-Applicable Requirement part of the Staff Report and identified in Part E of the ROP.

The stationary source is located in Wexford County, which is currently designated by the U.S. Environmental Protection Agency (USEPA) as attainment/unclassified for all criteria pollutants.

The stationary source is subject to Title 40 of the Code of Federal Regulations (CFR) Part 70, because the source is subject to 40 CFR Part 60, Subparts A and WWW as it has a design capacity of greater than 2.5 million megagrams and 2.5 million cubic meters. Active gas collection is a requirement of landfills that have exceeded 50 Mg/year NMOC emissions. Since the NMOC emissions from the landfill have not yet reached 50 Megagrams, the installation of this system was voluntary and there are no operational requirements for the system under 40 CFR Part 60, Subpart WWW. This current active system is allowed to be operated by Wexford County Landfill until 30 months after the facility's actual NMOC emissions reach 50 Megagrams. When the actual NMOC emission at Wexford County Landfill reaches 50 Megagrams, the landfill then has 12 months to submit an approvable design plan that satisfies the requirements of 40 CFR Part 60, Subpart WWW. Some of the requirements of 40 CFR Part 60, Subpart WWW require the design plan to specify equipment that can fulfill specific capture and destruction efficiencies. It is expected that this design plan will include an active landfill gas collection system that will be routed to a landfill gas combustion device. Within 18 months after the design plan has been submitted, the equipment specified in the approved design plan shall be installed and operating properly.

The stationary source is considered to be a minor source of HAP emissions because the potential to emit of any single HAP regulated by the federal Clean Air Act, Section 112, is less than 10 tons per year and the potential to emit of all HAPs combined are less than 25 tons per year.

No emissions units at the stationary source are currently subject to the Prevention of Significant Deterioration regulations of Part 18, Prevention of Significant Deterioration of Air Quality of Act 451, because the potential to emit of all criteria pollutants is less than 250 tons per year.

The source is subject to the Standards of Performance for Municipal Solid Waste Landfills promulgated in 40 CFR Part 60, Subparts A and WWW.

MSW landfills are regulated under National Emission Standards for Hazardous Air Pollutants: Municipal Solid Waste Landfills promulgated in 40 CFR Part 63, Subparts A and AAAA. However, Wexford County Landfill is currently not currently subject to this standard. Although it has a design capacity of greater than 2.5 million megagrams and 2.5 million cubic meters, it has uncontrolled NMOC emissions of less than 50 megagrams per year.

Wexford County Landfill accepts asbestos containing materials and therefore is regulated under the National Emission Standards for Hazardous Air Pollutants: National Emission Standards for Asbestos promulgated in 40 CFR Part 61, Subparts A and M. These requirements are contained in EUASBESTOS.

The landfill received a volume expansion permit from the MDEQ in April of 2000 and another in August of 2012. These permits increased the design capacity of the landfill to 3.45 million Mg, making it subject to 40 CFR Part 60, Subpart WWW.

This facility employs the use of a leachate evaporation system. This system is exempt from the requirement to obtain a Permit to Install pursuant to Rule 285(aa).

There is an aeration pond, currently not in operation, which was used for a separate cleanup project that has been completed. It was used previously to hold water contaminated with VOC. The facility asked that it be kept in the ROP in the event that it was needed. It is considered exempt under R 336.1290.

Recently finalized Emissions Guidelines (40 CFR Part 60, Subpart Cf) will be applicable to the source once the State of Michigan's Plan has been approved by USEPA.

The monitoring conditions contained in the ROP are necessary to demonstrate compliance with all applicable requirements and are consistent with the "Procedure for Evaluating Periodic Monitoring Submittals."

No emission units have emission limitations or standards that are subject to the federal Compliance Assurance Monitoring rule under 40 CFR Part 64, because all emission units at the stationary source either do not have a control device or those with a control device do not have potential pre-control emissions over the major source thresholds.

Please refer to Parts B, C and D in the draft ROP for detailed regulatory citations for the stationary source. Part A contains regulatory citations for general conditions.

Source-wide Permit to Install (PTI)

Rule 214a requires the issuance of a Source-wide PTI within the ROP for conditions established pursuant to Rule 201. All terms and conditions that were initially established in a PTI are identified with a footnote designation in the integrated ROP/PTI document.

Currently, no PTIs have been issued to this source. Therefore, no Source-wide PTI will be issued.

Streamlined/Subsumed Requirements

This ROP does not include any streamlined/subsumed requirements pursuant to Rules 213(2) and R 213(6).

Non-applicable Requirements

Part E of the ROP lists requirements that are not applicable to this source as determined by the AQD, if any were proposed in the ROP Application. These determinations are incorporated into the permit shield provision set forth in Part A (General Conditions 26 through 29) of the ROP pursuant to Rule 213(6)(a)(ii).

Processes in Application Not Identified in Draft ROP

The following table lists processes that were included in the ROP Application as exempt devices under Rule 212(4). These processes are not subject to any process-specific emission limits or standards in any applicable requirement.

Exempt Emission Unit ID	Description of Exempt Emission Unit	Rule 212(4) Exemption	Rule 201 Exemption
EUFlare	EUFlare is the flare used to combust collected landfill gas	R 336.1212(4)(h)	R 336.1285(aa)
EUEvaporator	EUEvaporator is used to evaporate collected leachate	R 336.1212(4)(h)	R 336.1285(aa)

The facility has two exempt emission units not included in the current ROP. EUFlare is the flare used to combust collected landfill gas and is exempt under Rules 285(aa) and 212(4)(g). EUEvaporator is used to evaporate collected leachate and is also exempt under Rules 285(aa) and 212(4)(g). They are not subject to a process specific emission limitation or standard.

Draft ROP Terms/Conditions Not Agreed to by Applicant

This draft ROP does not contain any terms and/or conditions that the AQD and the applicant did not agree upon pursuant to Rule 214(2).

Compliance Status

The AQD finds that the stationary source is expected to be in compliance with all applicable requirements as of the effective date of this ROP.

Action taken by the MDEQ, AQD

The AQD proposes to approve this ROP. A final decision on the ROP will not be made until the public and affected states have had an opportunity to comment on the AQD's proposed action and draft permit. In addition, the USEPA is allowed up to 45 days to review the draft ROP and related material. The AQD is not required to accept recommendations that are not based on applicable requirements. The delegated decision maker for the AQD is Shane Nixon, Cadillac District Supervisor. The final determination for ROP approval/disapproval will be based on the contents of the ROP Application, a judgment that the stationary source will be able to comply with applicable emission limits and other terms and conditions, and resolution of any objections by the USEPA.

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**APRIL 24, 2017 - STAFF REPORT
ADDENDUM**

MI-ROP-N3862-2017

Purpose

A Staff Report dated March 20, 2017, was developed in order to set forth the applicable requirements and factual basis for the draft Renewable Operating Permit (ROP) terms and conditions as required by R 336.1214(1). The purpose of this Staff Report Addendum is to summarize any significant comments received on the draft ROP during the 30-day public comment period as described in R 336.1214(3). In addition, this addendum describes any changes to the draft ROP resulting from these pertinent comments.

General Information

Responsible Official:	Mr. Edward G. Ascione, President 231-258-9030
AQD Contact:	Rob Dickman, Environmental Quality Analyst 231-876-4412

Summary of Pertinent Comments

No pertinent comments were received during the 30-day public comment period.

Changes to the March 20, 2017 Draft ROP

No changes were made to the draft ROP.